Undertaking of Secrecy, Non Solicitation and Non-Compete

I undertake that, during and after the tenure of my employment with National Payments Corporation of India (the "**Company**"), I will not disclose, share or communicate or allow to be disclosed, shared or communicated to any person not legally entitled thereto, any trade secrets or intellectual property of the Company, any information relating to the affairs of the Company or the affairs of any person having any dealing with the Company. I will not allow any such person to inspect or have access to any books, documents, information or data, belonging to, or in the possession of the Company, including but not limited to any hardware, software, data communication network, and information or data held on computer systems or any other electronic devices or cloud storage portals, and relating to the business of the Company, or to the business of any person having any dealing with the Company. I undertake not to utilize or deal, in any manner whatsoever, with the intellectual property, trade secrets and other proprietary or confidential information of the Company after the tenure of my employment with the Company. I shall take all reasonable steps to keep all the proprietary and confidential information of the Company and the persons dealing with the Company in confidence.

For the purpose of this undertaking, 'trade secret' shall mean a process, device, formula or other business/commercial information that is kept confidential to maintain an advantage over competitors; information including a formula, pattern, compilation, program, device, method, technique or process:

1. that derives independent economic value, actual or potential, from not being generally known or readily ascertainable by others who can obtain economic value from its disclosure or use, and;
2. that is the subject of reasonable efforts, under the circumstances, to maintain its secrecy; and/or such other information that is considered to be a trade secret as per the applicable law.

Non-Compete: I agree that I will not, without the prior written consent of the Company, at any time during my employment with the Company and for a period of twelve months following the cessation of my employment, either individually or in partnership or jointly or in conjunction with any person or in any other manner compete with the business of the Company and it successors and assigns.

The term “not compete” as used herein shall mean that I shall not own, manage, operate, consult or be employed (as on-roll employee, consultant or on contract basis) in a business substantially similar to or competitive with the present business of the Company or such other business activity in which the Company may substantially engage during the term of my service.

The competitive organisations for the Company are Visa, MasterCard, American Express and other company or organisation, operating now or in future, as clearing house for retail payments in India.

Non-Solicitation: I agree that I will not, without the prior written consent of the Company, at any time during my employment with the Company and for a period of twenty four months following the cessation of my employment, either individually or in partnership or jointly or in conjunction with any person or in any other manner contact or provide any assistance to any other person or organization who seeks to contact (i) any of the Company's existing employees for the purpose of soliciting, inducing or attempting to induce any of the Company's employees to terminate employment with the Company; or (ii) any of the Company’s existing clients and customers to cease to do business or to reduce the amount of business with the Company.

I acknowledge that the time and scope limitations of my obligations under this agreement are fair and reasonable in all respects, especially in light of the Company’s need to protect its business and scope and nature of its business and I will not be precluded from gainful employment if I am obligated not to compete with the Company or solicit its employees, customers or others during the period as set forth herein.

I agree that I have read and understood the above mentioned clauses and I accept the same.

Employee Code:

Name: **Signature:**

Date: